

ORIGINAL

(S E R V E D)
(JUNE 3, 2002)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO. 02-08

ODYSSEA STEVEDORING OF PUERTO RICO, INC.

v.

PUERTO RICO PORT AUTHORITY

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint has been filed with the Federal Maritime Commission ("Commission") by Odyssea Stevedoring of Puerto Rico, Inc. ("Complainant") against the Puerto Rico Port Authority ("PRPA").

Complainant contends that PRPA engaged in a number of activities in connection with negotiating and entering into marine terminal leases and agreements, including preferential use, berthing and warehousing agreements, which violated sections 1 O(d)(1), 10(d)(2), and 10(d)(4) of the Shipping Act of 1984 and injured the Complainant.

Complainant asks that PRPA be compelled to answer its charges and that the Commission order PRPA to: cease and desist from these violations; re-apportion certain terminal facilities located at the Port of San Juan between the remaining stevedoring and marine terminal companies, including Complainant; and take such further and other actions as to afford preferential usage, including berthing, warehousing and open spaces, as the Commission establishes as necessary to restore competition in regard to stevedoring and

breakbulk services in the Port of San Juan. The Complainant also requests the Commission to award it damages in an amount reflecting Complainant's lost business and profits; the amounts which Complainant has paid pursuant to PRPA's tariff which exceed the amounts Complainant would have paid pursuant to certain PRPA preferential use and exclusive use agreements; and such other further relief as the Commission determines just and proper in the circumstances.

This proceeding has been assigned to the office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.6 1, the initial decision of the presiding officer in this proceeding shall be issued by June 3, 2003, and the final decision of the Commission shall be issued by October 1, 2003.


Bryant L. VanBrakle
Secretary

a State designated No-Discharge Zone, pursuant to Section 33.e.1. of the New York State Navigation Law. Within the No-Discharge Zone, discharges from marine toilets are prohibited under Section 33.e.2 of the State Navigation Law, and marine sanitation devices on board vessels operated in a No-Discharge Zone must be secured to prevent discharges. This statute may be enforced by any police officer or peace officer acting pursuant to their special duties.

Dated, May 21, 2002.

Jane M. Kenny,

Regional Administrator, Region II

[FR Doc. 02-14495 Filed 6-7-02; 8:45 am]

BILLING CODE 6580-50-P

ENVIRONMENTAL PROTECTION AGENCY

[FRL-7225-2]

Public Water System Supervision Program Revisions for Iowa

AGENCY: Environmental Protection Agency (EPA).

ACTION: Notice of tentative approval and solicitation of requests for a public hearing.

SUMMARY: Notice is hereby given that Iowa is revising its approved Public Water System Supervision Program. The EPA has determined that these revisions are no less stringent than the corresponding Federal regulations. Therefore, the EPA intends to approve these program revisions. All interested parties may request a public hearing on the approval.

DATES: A request for a public hearing must be submitted in writing by July 10, 2002, to the Regional Administrator at the EPA Region 7 address.

ADDRESSES: Copies of documents related to this determination are available for inspection between the hours of 9 a.m. and 3 p.m., Monday through Friday, at the following locations: EPA Region 7, 901 N. 5th Street, Kansas City, Kansas, 66101, and Iowa Department of Natural Resources, Water Supply Section, 401 SW 7th Street, Suite "M", Des Moines, Iowa, 50309.

FOR FURTHER INFORMATION CONTACT: Stan Calow, 913-551-7798.

SUPPLEMENTARY INFORMATION: Iowa has adopted (1) the Consumer Confidence Report regulations that require community water systems to prepare and provide to their customers annual consumer confidence reports on the quality of the water delivered by the systems (63 FR 44511-44536, August

19, 1998); (2) a revised definition of "public water systems" (63 FR 23361-23368, April 28, 1998); (3) the Analytical Methods for Chemical and Microbiological Contaminants and Revisions to Laboratory Certification Requirements (64 FR 67449-67467, December 1, 1998); (4) an Interim Enhanced Surface Water Treatment Rule to improve control of microbial pathogens in drinking water, including the protozoan, *Cryptosporidium* (63 FR 69477-69521, December 16, 1998); and (5) a Stage 1 Disinfection/ Disinfection By-Products Rule, setting requirements to limit the formation of chemical disinfectant by-products in drinking water (63 FR 69389-69476, December 16, 1998).

Any request for a public hearing must include the following information: (1) The name, address, and telephone number of the individual, organization, or other entity requesting a hearing; (2) a brief statement of the requesting person's interest in the Regional Administrator's determination and a brief statement of information that the requesting person intends to submit at such hearing; and (3) the signature of the individual making the request; or, if the request is made on behalf of an organization or other entity, the signature of a responsible official of the organization or other entity.

Insubstantial requests for a hearing may be denied by the Regional Administrator. However, if a substantial request is made by July 10, 2002, a public hearing will be held. If no timely and appropriate request for a hearing is received and the Regional Administrator does not elect to hold a hearing on his own motion, this determination will become final and effective on July 10, 2002.

Authority: 40 CFR 142.12.

Dated: May 28, 2002.

William Rice,

Acting Administrator, Region 7.

[FR Doc. 02-14210 Filed 6-7-02; 8:45 am]

BILLING CODE 6560-50-P

FEDERAL COMMUNICATIONS COMMISSION

[Report No. 2555]

Petition for Reconsideration of Action in Rulemaking Proceeding

June 4, 2002.

Petition for Reconsideration has been filed in the Commission's rulemaking proceeding listed in this Public Notice and published pursuant to 47 CFR Section 1.429(e). The full text of this

document is available for viewing and copying in Room CY-A257, 445 12th Street, SW., Washington, DC or may be purchased from the Commission's copy contractor, Qualex International (202) 863-2893. See Section 1.4(b)(1) of the Commission's rules (47 CFR 1.4(b)(1)). Replies to an opposition must be filed within 10 days after the time for filing oppositions has expired.

Subject. Amendment FM Table of Allotments, Order to Show Cause (MM Docket No. 89-120); Amendment FM Table of Allotments, Order to Show Cause (MM Docket No. 91-352); Amendment of FM Table of Allotments (MM Docket No. 90-195); Amendment of the FM Table of Allotments (MM Docket No. 92-214).

Number of Petitions Filed: 1.

Marlene H. Dortch,
Secretary.

[FR Doc. 02-14461 Filed 6-7-02; 8:45 am]

BILLING CODE 6712-01-M

FEDERAL ELECTION COMMISSION

Sunshine Act; Meeting Notice

PREVIOUSLY ANNOUNCED DATE & TIME: Thursday, June 13, 2002, meeting open to the public.

This meeting has been cancelled.

PERSON TO CONTACT FOR INFORMATION:

Mr. Ron Harris, Press Officer,
Telephone: (202) 694-1220.

Mary W. Dove,

Secretary of the Commission.

[FR Doc. 02-14676 Filed 6-6-02; 2:44 pm]

BILLING CODE 6715-01-M

FEDERAL MARITIME COMMISSION

[Docket No. 02-08]

Odyssey Stevedoring of Puerto Rico, inc. v. Puerto Rico Port Authority; Notice of Filing of Complaint and Assignment

Notice is given that a complaint has been filed with the Federal Maritime Commission ("Commission") by Odyssey Stevedoring of Puerto Rico, Inc. ("Complainant") against the Puerto Rico Port Authority ("PRPA").

Complainant contends that PRPA engaged in a number of activities in connection with negotiating and entering into maritime terminal leases and agreements, including preferential use, berthing and warehousing agreements, which violated sections 10(d)(1), 10(d)(2), and 10(d)(4) of the Shipping Act of 1984 and injured the Complainant.

Complainant asks that PRPA be compelled to answer its charges and that the Commission order PRPA to: Cease and desist from these violations; re-apportion certain terminal facilities located at the Port of San Juan between the remaining stevedoring and marine terminal companies, including Complainant; and take such further and other actions as to afford preferential usage, including berthing, warehousing and open spaces, as the Commission establishes as necessary to restore competition in regard to stevedoring and breakbulk services in the Port of San Juan. The Complainant also requests the Commission to award it damages in an amount reflecting Complainant's lost business and profits; the amounts which Complainant has paid pursuant to PRPA's tariff which exceed the amounts Complainant would have paid pursuant to certain PRPA preferential use and exclusive use agreements, and such other further relief as the Commission determines just and proper in the circumstances.

This proceeding has been assigned to the office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by June 3, 2003, and the final decision of the Commission shall be issued by October 1, 2003.

Bryant L. VanBrakle,
Secretary.

[FR Doc. 02-14411 Filed 6-7-02; 8:45 am]

BILLING CODE 6750-01-M

FEDERAL RESERVE SYSTEM

Change in Bank Control Notices; Acquisition of Shares of Bank or Bank Holding Companies

The notificants listed below have applied under the Change in Bank Control Act (12 U.S.C. 1817(j)) and

\$225.41 of the Board's Regulation Y (12 CFR 225.41) to acquire a bank or bank holding company. The factors that are considered in acting on the notices are set forth in paragraph 7 of the Act (12 U.S.C. 1817(j)(7)).

The notices are available for immediate inspection at the Federal Reserve Bank indicated. The notices also will be available for inspection at the office of the Board of Governors. Interested persons may express their views in writing to the Reserve Bank indicated for that notice or to the offices of the Board of Governors. Comments must be received not later than June 25, 2002.

A. Federal Reserve Bank of Kansas City (D. Michael Manies, Assistant Vice President) 925 Grand Avenue, Kansas City, Missouri 64198-0001:

1. **John W. Sutherland, Jr.**, Andover, Kansas; to acquire voting shares of Ottawa Bancshares, Inc., Salina, Kansas, and thereby indirectly acquire voting shares of First Bank Kansas, Salina, Kansas; First Kansas Bank, Hoisington, Kansas; Kansas State Bank, Ottawa, Kansas and The Lyon County State Bank, Emporia, Kansas.

Board of Governors of the Federal Reserve System, June 4, 2002.

Robert deV. Frierson,
Deputy Secretary of the Board.

[FR Doc. 02-14396 Filed 6-7-02; 8:45 am]

BILLING CODE 6210-01-S

GENERAL SERVICES ADMINISTRATION

Office of Communications; Cancellation of Standard Forms

AGENCY: Office of Management Services, GSA.

ACTION: Notice.

SUMMARY: The General Services Administration (GSA), Office of Governmentwide Policy canceled the following forms:

SF 1109, U.S. Government Bill of Lading-Continuation Sheet (both constructions)

SF 1200, Government Bill of Lading Correction Notice

The Federal Management Regulation (41 CFR) 102-118 prescribing these forms was rewritten to delete their use.

DATES: Effective June 10, 2002.

FOR FURTHER INFORMATION CONTACT: Ms. Elizabeth Allison, General Services Administration, (202) 219-1729.

Dated: June 4, 2002.

Barbara M. Williams,
Deputy Standard and Optional Forms Management Officer, General Services Administration

[FR Doc. 02-14509 Filed 6-07-02; 8:45 am]

BILLING CODE 6820-BR-M

GENERAL SERVICES ADMINISTRATION

Office of Management Services; Transfer of Responsibility and Revision of an Optional Form by the U.S. Office of Personnel Management

AGENCY: General Services Administration.

ACTION: Notice.

SUMMARY: The U.S. Office of Personnel Management has transferred the ownership of the following Optional Form: OF 55, U.S. Government Identification.

The General Services Administration is responsible for government-wide regulations on security and building access; therefore, this form should be issued by them.

Also, the "If found * * *" address was updated on the reverse of the form.

This form is now authorized for local reproduction. Agencies may request a camera copy to use for printing from: Forms Management, (202) 501-0581, e-mail: barbm.williams@gsa.gov or the Internet: <http://w3.gsa.gov/web/c/newform.nsf/MainMenu?OpenForm>.

DATES: Effective June 10, 2002.

FOR FURTHER INFORMATION CONTACT: Ms. Barbara Williams, General Services Administration, (202) 501-0581.

Dated: May 27, 2002.

Barbara M. Williams,
Deputy Standard and Optional Forms Management Officer, General Services Administration

[FR Doc. 02-14508 Filed 6-7-02; 8:45 am]

BILLING CODE 6820-BR-M

GENERAL SERVICES ADMINISTRATION

[OMB Control No. 3090-0252]

Submission for OMB Review and Public Comments; Comment Entitled Preparation, Submission, and Negotiation of Subcontracting Plans

AGENCY: Office of Acquisition Policy, GSA.

ACTION: Notice of request for an extension to an existing OMB clearance (3090-0252).